01 — Terms of use

Français (version de référence) : ../fr/01-conditions-generales-utilisation.md

> **TEMPLATE — DO NOT PUBLISH AS IS.** To be completed ([…] fields) and validated by a lawyer admitted to a DRC bar. Not legal advice. The French version is the reference text.

Header	
Jurisdiction	Democratic Republic of the Congo; OHADA law for commercial aspects
Assumptions	H-01 (operating company), H-02 (business customers), H-09 (no standardised invoice), H-10 (forum), H-12 (trademark), H-17 (licence)
Sources	S01 (Digital Code, art. 48–72), S08 (standardised invoice), S12–S13 (IP) — see 00-legal-research.md § 7
Clauses to validate	V-02, V-12
Interplay	These terms govern use of the website and applications by **any person**. A business's subscription contract is governed by the SaaS terms of service (template 02), which prevail in case of conflict
Version	[NUMBER] of [DATE]

1. Publisher

The website [WEBSITE ADDRESS] and the Nhill Business, Nhill POS and Nhill Console applications are published by [COMPANY NAME], [LEGAL FORM] with a capital of [CAPITAL], registered with the [CITY] RCCM under No. [RCCM], national identification [NAT. ID], tax number [NIF], registered office [ADDRESS] (the "Publisher"). Contact: [E-MAIL], [PHONE].

2. Purpose and acceptance

These terms set the conditions for accessing and using the Nhill website and applications (the "Service"). Creating an account, joining a business or using the Service means accepting these terms in their current version, available at any time at [TERMS ADDRESS].

3. Access to the Service

3.1 The Service is intended for businesses (traders, companies, associations, sole traders) for their trade. **[TO VALIDATE: V-10 — regime applicable to sole traders.]**

3.2 Access requires a personal account: a valid e-mail address and a password of at least 8 characters. Users choose a password they do not use elsewhere and keep it confidential. No periodic change is required; users change their password if they think it was seen or guessed.

3.3 An account is strictly personal. Sharing one account between several people is prohibited: each employee gets their own access, which lets the activity log attribute each action to its author.

3.4 The Publisher may suspend an account used in breach of these terms or of the acceptable use policy (template 08), after informing the user except in an emergency (security, fraud, order from an authority).

4. Roles

- **Business**: the customer company that subscribed; its owner and administrators manage the team and rights.
- **User**: any person with an account linked to a business.
- **Publisher**: operates the infrastructure and provides support; it does not access the content of businesses' documents (see the privacy policy, template 03).

5. User obligations

Users undertake to: provide accurate information; use the Service lawfully, including tax and commercial law; not attempt to access another business's data; not disrupt the Service; comply with the acceptable use policy (template 08).

6. Documents produced by the Service

6.1 Invoices, quotes, credit notes, receipts and reports produced by Nhill are **management documents**. Nhill **is not an invoicing system certified** by the DRC Directorate-General of Taxes (DGI) and is not connected to any electronic tax device.

6.2 A VAT-registered user remains solely responsible for issuing standardised invoices with a certified device or software and for meeting their filing obligations. Nhill lets them record the standardised invoice reference for reconciliation. **[TO VALIDATE: V-12.]**

6.3 Amounts computed by the Service (taxes, totals, estimated margins) follow the settings entered by the business; users check these settings (rates, tax profiles) with their adviser.

7. Intellectual property

7.1 The Service, its software, interfaces, "Nhill" trademarks and logos belong to the Publisher or its licensors. **[TO VALIDATE: H-12 — trademark availability and registration.]** No right is granted to users beyond the licence in template 12 and the terms of service.

7.2 Data entered by a business belongs to it. The Publisher only uses it to provide the Service (see templates 02 and 06).

7.3 Open-source components included in the applications (for example Qt, under LGPL v3) remain subject to their licences, listed with the applications.

8. Availability and liability

The Service is provided under template 02 (subscribers) and template 07 (service level agreement, if taken). The Publisher is not liable for unavailability caused by the user's Internet access or power supply, or for misuse of the Service. **[TO VALIDATE: V-01.]**

9. Personal data

Personal data processing is described in the privacy policy (template 03).

10. Changes to these terms

The Publisher may change these terms. Users are informed at least [30] days before a substantial change takes effect, by an in-application message or by e-mail. Using the Service after that date means accepting the change.

11. Governing law and disputes

These terms are governed by the law of the Democratic Republic of the Congo. Before any action, the parties seek an amicable solution for [30] days. Failing that, the dispute is brought before [the Kinshasa/Gombe commercial court] **[TO VALIDATE: V-02 — court or arbitration]**.

12. Contact

[CONTACT E-MAIL] — [POSTAL ADDRESS].